

2021 P L C (C.S.) 115

[Lahore High Court]

Before Jawad Hassan, J

ABU BAKAR SIDDIQUE

Versus

I.G. PUNJAB POLICE LAHORE and others

Writ Petition No.11427 of 2017, heard on 14th October, 2020.

(a) Civil service---

---Appointment to advertised post---Scope---Grievance of petitioner was that he had passed written test, endurance test as well as appeared in general interview however, he was declared 'Fail' in general interview despite the fact that he had been on top in other tests---Validity---Petitioner could not obtain 8 marks out of 20 marks in general interview, therefore, he was declared 'Fail' by the interview committee---Clause 19 of the advertisement clearly demonstrated that the candidates had to pass all exams/interview and in case of failure at any stage, they would not be recruited---Constitutional petition, being meritless, was dismissed.

(b) Civil service---

---Appointment to advertised post---Scope---Advertisement is a promise stating all the rules which the authority undertakes to observe in consideration for giving employment to the most suitable candidate.

(c) Constitution of Pakistan---

---Art.199---Constitutional jurisdiction of High Court, exercise of---Object---Scope---Object of proceedings initiated under Art. 199 of the Constitution is only the enforcement of Fundamental Rights and not the establishment of rights

Asdullah Mangi and others v. Pakistan International Airlines Corporation and others
2005 SCMR 445 rel.

Ch. Anees ur Rehman for Petitioner.

Barrister Hassan Khalid Ranjha, Assistant Advocate General for Respondent.

Date of hearing: 14th October, 2020.

JUDGMENT

JAWAD HASSAN, J.----The Petitioner has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") by challenging a quasi-judicial order dated 17.02.2017 passed by the Respondent No.2 pursuant to directions issued in W.P.No.37385 of 2016 dated 29.11.2016.

2. Facts of the case, as per petition, are that the Petitioner applied for the post of Intelligence Operator (BPS-07). He passed written as well as NTS tests and also called for general interview. When no call was made by the Respondents for final psychological test, he approached the Respondents and filed application. Non-responsive attitude of the Respondents prompted the Petitioner to approach this Court by filing W.P.No.37385 of 2016. The said writ petition was disposed of on 29.11.2016 with direction to the Respondents to pass a speaking order in accordance with law. When directions issued in aforesaid writ petition were not complied with, the Petitioner filed Crl.Org.No.130-W of 2017 wherein the Respondents submitted order dated 17.02.2017. Hence, this writ Petition.

3. Learned counsel for the Petitioner inter alia contended that the impugned order has been passed by the Respondent No.2 without calling record as such the same is illegal and unlawful; that the Petitioner secured 84 marks and has been on top of examination however, the Respondents have passed the Respondents Nos.5 to 21 on the basis of political influence; that the impugned order is against the fundamental rights envisaged under Articles 10-A and 25 of the Constitution.

4. On the other hand, learned Law Officer submitted report and parawise comments denying the allegations levelled in the petition and prayed for dismissal of the same on the ground that the Petitioner could not get requisite marks in general interview which is the requirement of advertisement as such he was rightly declared 'fail'.

5. I have heard the arguments of both the sides and examined available record.

6. The only grievance of the Petitioner is that he passed NTS written test, endurance test as well as appeared in general interview however, he has been declared fail in general interview despite of the fact that he has been on top in other tests. It is evident from the record that the Respondents had advertised the posts of Intelligence Operator (BPS-07) on contract basis. Perusal of impugned order reveals that the Petitioner could not obtain 08 marks out of 20 marks in General interview whereas he only obtained 04 marks therefore, he was declared 'Fail' by the interview committee and due to this reason he was not called in psychological interview. The said fact was also evident from the report and parawise comments submitted by the Respondents Nos.1 to 3. The ground agitated by the Petitioner before the Court is that he obtained 84 marks out of 100 in the written test however, he was declared fail overall. It is noted that pursuant to order dated 13.11.2017, the Respondents constituted a three-member committee in order to check the suitability of candidates for the post applied. Learned law officer, during the course of arguments, submitted report on behalf of the Respondent No.4 (Interview Board) according to which the interview board unanimously assessed the performance of the candidates including the Petitioner and

awarded numbers according to their performance. The interview board observed that during general interview, the Petitioner's performance was not up to the mark thus he was declared fail and was not called for psychological interview.

7. More importantly, clause 19 of the advertisement clearly demonstrates that the candidates have to pass all exams/interviews and in case of failure at any stage, they would not be recruited. No doubt the Petitioner passed NTS test by securing 84 marks however, he could not get the required marks in general interview. It is therefore to be noted that an advertisement is a promise stating all the rules which the authority undertakes to observe in consideration for giving employment to the most suitable candidate. Since the Petitioner has not fulfilled Clause-19 of the advertisement therefore, was rightly denied by the Respondents which action cannot be termed as illegal/unlawful or violative to the rights of the Petitioner.

8. It is to be noted that the Respondents are bound to follow their statute/rules/regulations and the Courts cannot rescue any person to issue direction for the relief to which he is not eligible. Moreover, no element of mala fide on the part of the Respondents has been shown by the Petitioner towards refusal for not calling in psychological interview.

9. So far as the issue of political influence is concerned, the Petitioner remained unsuccessful to prove any such influence in passing the Respondents Nos.5 to 21. This Court in "Shaukat Ali v. Chairman Punjab Local Government Board" (1999 PLC (C.S.) 637) held that admittedly, the petitioner is a civil servant. The order impugned in this petition has been passed by the Secretary, Local Government, Punjab who is the competent Authority. There is nothing on record to suggest that the said order has been passed at the instance of any politician or a Minister. He is the competent Departmental Authority who has passed this order. The assertion of the petitioner in Paragraph No. 9(ii) that the order has been passed under the dictation of a Provincial Minister, has categorically been denied in the comments, filed by the respondents Nos.1 and 2. It is also stated in the comments that the order has been passed due to the exigencies of service, in public interest, and on administrative grounds. In this view of the matter, when there is nothing on record to suggest to the contrary the order of transfer is presumed to have been passed in public interest due to the exigency of service. Furthermore, provisions of Article 25 of the Constitution will not help the cause of the Petitioner and no case of discrimination in terms of the said Article has been made out.

10. Another ground agitated by the Petitioner is the violation of Article 10-A of the Constitution. Bare perusal of impugned order reveals that the Respondents afforded an opportunity of hearing to the Petitioner on 20.01.2017 and he was heard at length by the Additional IGP/Special Branch, Punjab, hence this ground is not tenable.

11. Moreover, writ is only for enforcement of fundamental rights and not for entitlement of rights as per law laid down by Hon'ble Supreme Court of Pakistan in "Asdullah Mangi and others v. Pakistan International Airlines Corporation and others" (2005 SCMR 445) wherein it has been held that "the right which is the foundation of an application under Article 199 of the Constitution is a personal and individual right. The legal right may be a statutory right or a right recognized by the law. A person can be said to be aggrieved only when a person is

denied a legal right by someone who has a legal duty to perform relating to the right. There must not only be a right but a justifiable right in existence, to give jurisdiction to the High Court in the matter. Unless whatever right, no order can be issued under Article 199." It has been further held in the judgment supra that Object of proceedings initiated under Article 199 of the Constitution is the enforcement of a right and not the establishment of legal right and therefore, the right of the incumbent concerned which he seeks to enforce, must not only be clear and complete but simpliciter and there must be an actual infringement of the right".

12. In view of above, it is clear that the Respondent No.2 has passed the well-reasoned order after examining all the record and providing proper opportunity of hearing, therefore, I see no merit in the instant petition and the same is hereby dismissed.

SA/A-70/L

Petition dismissed.